TITLE 8.—ALIENS AND CITIZENSHIP

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CROSS REFERENCE

Enemy aliens, see Title 50, WAR.

Chapter 1.—CITIZENSHIP

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Section 1. Citizens; who are. All persons born in the United States and not subject to any foreign power are declared to be citizens of the United States. (R. S. § 1992.)

From Act Apr. 9, 1866, c. 31, § 1, 14 Stat. 27.

§ 2. Same; persons born in Oregon. All persons born in the district of country formerly known as the Territory of Oregon, and subject to the jurisdiction of the United States on the 18th May 1872 are citizens in the same manner as if born elsewhere in the United States. (R. S. § 1995.)

From Act May 18, 1872, c. 172, § 3, 17 Stat. 134.

§ 3. Same; Indians; Indians serving in Military or Naval Establishments during World War. All Indians born within the territorial limits of the United States are declared to be citizens of the United States. The granting of citizenship to Indians shall not in any manner affect the right of any Indian to tribal or other property.

Every American Indian who served in the Military or Naval Establishments of the United States during the war against the Imperial German Government, and who has received or may receive an honorable discharge, if not a citizen on November 6, 1919, and if he so desires, shall, on proof of such discharge and after proper identification before a court of competent jurisdiction, and without other examination, except as prescribed by said court, be granted full citizenship with all the privileges pertaining thereto, without in any manner impairing or otherwise affecting the property rights, individual or tribal, of any such Indian, or his interest in tribal or other Indian property. (Feb. 8, 1887, c. 119, § 6, 24 Stat. 390; Mar. 3, 1901, c. 868, 31 Stat. 1447; May 8, 1906, c. 2348, 34 Stat. 182; Nov. 6, 1919, c. 95, 41 Stat. 350; Mar. 3, 1921, c. 120, § 3, 41 Stat. 1250; June 2, 1924, c. 233, 43 Stat. 253.)

§ 3a. Same; Cherokee Indians. All noncitizen Cherokee Indians born within the territorial limits of the United States and resident in the State of North Carolina are hereby declared to be citizens of the United States and entitled to all the rights, privileges, and immunities belonging to such citizens, including the right of franchise, provided they can meet and conform to the educational and other tests imposed upon voters of the State of North Carolina, as a condition precedent to the exercise of such right of franchise. All Acts or parts of Acts of Congress inconsistent herewith are hereby repealed. Nothing contained in this section shall in any manner impair or otherwise affect the right of any Indian to tribal or other property. (June 19, 1930, c. 544, 46 Stat. 787.)

§ 3b. Same; Indians of Metlakahtla, Alaska. The Indians of the Tsimshian Tribe, and those people known as Metlakabtlans, who emigrated from Metlakahtla, British Columbia, Canada, to Annette Island, in the Alexander Archipelago in southeastern Alaska in the year 1887, and there establisbed a colony known as Metlakahtla, Alaska, and any and all other British Columbia Indians who joined them there not later than January 1, 1900, and have since resided continuously therein, having been faithful and loyal to the Constitution, laws, and the Government of tbe United States, are hereby declared to be citizens of the United States. (May 7, 1934, c. 221, § 1, 48 Stat. 667.)

§ 3c. Same; property rights; rights of United States. The granting of citizenship to the Indians described in section 3b of this title shall not in any manner affect the rights, individual or collective, of the said Indians to any property, nor shall it affect the rights of the United States Government to supervise and administer the affairs of the said Metlakahtla Colony. And any reservations heretofore made by any Act of Congress or Executive order or proclamation for tbe benefit of the said Indians shall continue in full force and effect and shall continue to be subject to modification, alteration, or repeal by the Congress or the President, respectively. (May 7, 1934, c. 221, § 2, 48 Stat. 667.)

§ 4. Same; Hawaiians. All persons who were citizens of the Republic of Hawaii on August 12, 1898, are declared to be citizens of the United States. (Apr. 30, 1900, c. 339, § 4, 31 Stat. 141.)

§ 5. Same; Puerto Ricans. All citizens of Puerto Rico, as defined by section 733 of Title 48, and all natives of Puerto Rico who were temporarily absent from that island on April 11, 1899, and have since returned, and are permanently residing in that island, and are not citizens of any foreign country, are declared, and shall be deemed and beld to be, citizens of the United States: *Provided*, That any person hereinbefore described may retain his political status held on March 2, 1917, by making a declaration, under oath, of his decision to do so within six months from said date before the district court in the district in which he resided, the declaration to be in form as follows:

"I, , being duly sworn, hereby declare my intention not to become a citizen of the United States as provided in the Act of Congress conferring United States citizenship upon citizens of Puerto Rico and certain natives permanently residing in said island."

In the case of any such person who may have been absent from the island during said six months the terms of this proviso may be availed of by transmitting a declaration, under oath, in the form herein provided within six months from March 2, 1917, to the executive secretary of Puerto Rico. Any person who was born in Puerto Rico of an alien parent and

was permanently residing in that island may, if of full age, within six months from March 2, 1917, or if a minor, upon reaching his majority or within one year thereafter, make a sworn declaration of allegiance to the United States before the United States District Court for Puerto Rico, setting forth therein all the facts connected with his or her birth and residence in Puerto Rico and accompanying due proof thereof, and from and after the making of such declaration shall be considered to be a citizen of the United States. (Mar. 2, 1917, c. 145, § 5, 39 Stat. 953; May 17, 1932, c. 190, 47 Stat. 158.)

§ 5a. Puerto Ricans; extension of time for becoming citizens of United States. Persons born in Puerto Rico of alien parents, referred to in the last paragraph of section 5 of this title, who did not avail themselves of the privilege granted to them of becoming citizens of the United States, shall have a period of one year from March 4, 1927, to make the declaration provided for in the aforesaid section: *Provided*, That persons who elected to retain the political status of citizens of Puerto Rico may within one year after March 4, 1927, become citizens of the United States upon the same terms and in the same manner as is provided for the naturalization of native Puerto Ricans born of foreign parents. (Mar. 2, 1917, c. 145, § 5a; Mar. 4, 1927, c. 503, § 2, 44 Stat. 1418; May 17, 1932, c. 190, 47 Stat. 158.)

§ 5b. Inhabitants of Virgin Islands; children. The following persons and their children born subsequent to January 17, 1917, are hereby declared to be citizens of the United States:

(a) All former Danish citizens who, on January 17, 1917, resided in the Virgin Islands of the United States, and are now residing in those islands or in the United States or Puerto Rico, and who did not make the declaration required to preserve their Danish citizenship by article 6 of the treaty entered into on August 4, 1916, between the United States and Denmark, or who, having made such a declaration, have heretofore renounced or may hereafter renounce it by a declaration before a court of record;

(b) All natives of the Virgin Islands of the United States who, on January 17, 1917, resided in those islands. and are now residing in those islands or in the United States or Puerto Rico, and who are not citizens or subjects of any foreign country; and

(c) All natives of the Virgin Islands of the United States who, on January 17, 1917, resided in the United States, and are now residing in the Virgin Islands of the United States, and who are not citizens or subjects of any foreign country.

(d) All natives of the Virgin Islands of the United States who are, on June 28, 1932, residing in continental United States, the Virgin Islands of the United States, Puerto Rico, the Canal Zone, or any other insular possession or Territory of the United States, who are not citizens or subjects of any foreign country, regardless of their place of residence on January 17, 1917. (Feb. 25, 1927, c. 192, § 1, 44 Stat. 1234; June 28, 1932, c. 283, § 5, 47 Stat. 336; May 17, 1932, c. 190, 47 Stat. 158.)

§ 5c. Persons born in Virgin Islands on or after January 17, 1917. All persons born in the Virgin Islands of the United States on or after January 17, 1917 (whether before or after February 25, 1927), and subject to the jurisdiction of the United States, are hereby declared to be citizens of the United States. (Feb. 25, 1927, c. 192, § 3, 44 Stat. 1235.)

§ 6. Citizens; children of citizens born outside of United States. Any child hereafter born out of the limits and jurisdiction of the United States whose father or mother or both at the time of the birth of such child is a citizen of the United States, is declared to be a citizen of the United States; but the rights of citizenship shall not descend to any such child unless the citizen father or citizen mother, as the case may be, has resided in the United States previous to the birth of such child. In cases where one of the parents is an alien, the right of citizenship shall not descend unless the child comes to the United States and resides therein for at least five years continuously immediately previous to his eighteenth birthday, and unless, within six months after the child's twenty-first birthday, he or she shall take an oath of allegiance to the United States of America as prescribed by the Immigration and Naturalization Service of the Department of Labor. (R. S. § 1993; Mar. 2, 1907, c. 2534, §§ 3, 7, 34 Stat. 1229; June 10, 1933, Ex. Or. 6166, § 14; May 24, 1934, c. 344, § 1, 48 Stat. 797.)

R. S. § 1993 from Act Apr. 14, 1802, c. 28 § 4, 2 Stat. 155; Act Feb. 10, 1855, c. 71, § 1, 10 Stat. 604.

§ 7. Citizenship of children of persons naturalized under certain laws. The children of persons who have been duly naturalized under any law of the United States, or who, previous to the passing of any law on that subject, by the Government of the United States, may have become citizens of any one of the States, under the laws thereof, being under the age of twenty-one years at the time of the naturalization of their parents, shall, if dwelling in the United States, be considered as citizens thereof; and the children of persons who now are, or have been, citizens of the United States, shall, though born out of the limits and jurisdiction of the United States, be considered as citizens thereof. (R. S. § 2172.)

From Act Apr. 14, 1802, c. 28, § 4, 2 Stat. 155.

§ 8. Same; children born abroad, of alien parents, by naturalization of parent. A child born without the United States of alien parents shall be deemed a citizen of the United States by virtue of the naturalization of or resumption of American citizenship by the father or the mother: *Provided*, That such naturalization or resumption shall take place during the minority of such child: *And provided further*, That the citizenship of such minor child shall begin five years after the time such minor child begins to reside permanently in the United States. (Mar. 2, 1907, c. 2534, § 5, 34 Stat. 1229; May 24, 1934, c. 344, § 2, 48 Stat. 797.)

§ 9. Same; citizenship of women citizens of United States as affected by marriage. A woman citizen of the United States shall not cease to be a citizen of the United States by reason of her marriage after March 3, 1931, unless she makes a formal renunciation of her citizenship before a court having jurisdiction over naturalization of aliens. (Sept. 22, 1922, c. 411, § 3 (a), 42 Stat. 1022; July 3, 1930, c. 835, § 1, 46 Stat. 854; Mar. 3, 1931, c. 442, § 4 (a), 46 Stat. 1511.)

§ 10. Same; women marrying citizens; effect of repeal of former law. The repeal of section 1994 of the Revised Statutes of 1874, providing that "any woman who is now or may hereafter be married to a citizen of the United States, and who might herself be lawfully naturalized, shall be deemed a citizen", shall not terminate citizenship acquired or retained thereunder. Nor shall repeal of section 4 of Act March 2, 1907, chapter 2534, Thirty-fourth Statutes, page 1229, providing that "any foreign woman who acquires American citizenship by marriage to an American shall be assumed to retain the same after the termination of the marital relation if she continue to reside in the United States, unless she makes formal renunciation thereof before a court having jurisdiction to naturalize aliens, or if she resides abroad she may retain her citizenship by registering as such before a United States consul within one year after the termination of such marital relation", terminate citizenship acquired or retained thereunder, nor restore citizenship lost thereunder. (Sept. 22, 1922, c. 411, § 6, 42 Stat. 1022.)

§ 11. Forfeiture of citizenship for desertion or avoidance of draft. Every person who deserts the military or naval service of the United States, or who, being duly enrolled, departs the jurisdiction of the district in which he is enrolled, or goes beyond the limits of the United States, with intent to avoid any draft into the military or naval service, lawfully ordered, shall be liable to all the penalties and forfeitures of section 12 of this title. The provisions of this section and said section 12 shall not apply to any

person deserting the military or naval service of the United States in time of peace. The loss of rights of citizenship prior to August 22, 1912, imposed by law upon deserters from the military or naval service may be mitigated or remitted by the President where the offense was committed in time of peace and where the exercise of such clemency will not be prejudicial to the public interests. (R. S. § 1998; Aug. 22, 1912, c. 336, § 1, 37 Stat. 356.)

R. S. § 1998 from Act Mar. 3, 1865, c. 79, § 21, 13 Stat. 490.

§ 12. Same; Civil War. All persons who deserted the military or naval service of the United States and did not return thereto or report themselves to a provost marshal within sixty days after the issuance of the proclamation by the President, dated March 11, 1865, are deemed to have voluntarily relinquished and forfeited their rights of citizenship, as well as their right to become citizens; and such deserters shall be forever incapable of holding any office of trust or profit under the United States or of exercising any rights of citizens thereof. No soldier or sailor, however, who faithfully served according to his enlistment until April 19, 1865, and who, without proper authority or leave first obtained, quit his command or refused to serve after that date, shall be held to be a deserter from the Army or Navy; and this section shall be construed solely as a removal of any disability such soldier or sailor may have incurred by the loss of citizenship and of the right to hold office in consequence of his desertion. (R. S. §§ 1996, 1997.)

R. S. § 1996 from Act Mar. 3, 1865, c. 79, § 21, 13 Stat. 490.

R. S. § 1997 from Act July 19, 1867, c. 28, 15 Stat. 14.

§ 13. Protection to naturalized citizens abroad. All naturalized citizens of the United States while in foreign countries are entitled to and shall receive from this Government the same protection of persons and property which is accorded to native-born citizens. (R. S. § 2000.)

From Act July 27, 1868, c. 249, § 2, 15 Stat. 224.

§ 14. Release of citizens imprisoned by foreign governments. Whenever it is made known to the President that any citizen of the United States has been unjustly deprived of his liberty by or under the authority of any foreign government, it shall be the duty of the President forthwith to demand of that government the reasons of such imprisonment; and if it appears to be wrongful and in violation of the rights of American citizenship, the President shall forthwith demand the release of such citizen, and if the release so demanded is unreasonably delayed or refused, the President shall use such means, not amounting to acts of war, as he may think necessary and proper to obtain or effectuate the release; and all the facts and proceedings relative thereto shall as soon as practicable be communicated by the President to Congress. (R. S. § 2001.)

From Act July 27, 1868, c. 249, § 3, 15 Stat. 224.

§ 15. Expatriation; right of. Whereas the right of expatriation is a natural and inherent right of all people, indispensable to the enjoyment of the rights of life, liberty, and the pursuit of happiness; and whereas in the recognition of this principle this Government has freely received emigrants from all nations, and invested them with the rights of citizenship; and whereas it is claimed that such American citizens, with their descendants, are subjects of foreign states, owing allegiance to the governments thereof; and whereas it is necessary to the maintenance of public peace that this claim of foreign allegiance should be promptly and finally disavowed: Therefore any declaration, instruction, opinion, order, or decision of any officer of the United States which denies, restricts, impairs, or questions the right of expatriation, is declared inconsistent with the fundamental principles of the Republic. (R. S. § 1999.)

From Act July 27, 1868, c. 249, § 1, 15 Stat. 223.

§ 16. Same; during time of war. No American citizen shall be allowed to expatriate himself when the country is at war. (Mar. 2, 1907, c. 2534, § 2, 34 Stat. 1228.)

§ 17. Same; presumption. Any American citizen shall be deemed to have expatriated himself when he has been naturalized in any foreign State in conformity with its laws, or when he has taken an oath of allegiance to any foreign State.

When any naturalized citizen shall have resided for two years in the foreign State from which he came, or for five years in any other foreign State it shall be presumed that he has ceased to be an American citizen, and the place of his general abode shall be deemed his place of residence during said years. Such presumption may be overcome on the presentation of satisfactory evidence to a diplomatic or consular officer of the United States, under such rules and regulations as the Department of State may prescribe. Duplicates of any evidence, registration, or other acts required by this section shall be filed with the Department of State for record. (Mar. 2, 1907, c. 2534, §§ 2, 7, 34 Stat. 1228, 1229.)

§ 17a. Same; marriage to foreigner. A citizen of the United States may upon marriage to a foreigner make a formal renunciation of his or her United States citizenship before a court having jurisdiction over naturalization of aliens, but no citizen may make such renunciation in time of war, and if war shall be declared within one year after such renunciation then such renunciation shall be void. (May 24, 1934, c. 344, § 3, 48 Stat. 797.)

§ 18. Repatriation of expatriated citizens. Any person who, while a citizen of the United States and during the World War in Europe, entered the military or naval service of any country at war with a country against whom the United States declared war, who shall be deemed to have lost his citizenship by reason of any oath or obligation taken by him for the purpose of entering such service, may resume his citizenship by taking the oath of allegiance to the United States prescribed by the naturalization law and regulations, and such oath may be taken before any court of the United States or of any State authorized by law to naturalize aliens or before any consul of the United States, and certified copies thereof shall be sent by such court or consul to the Department of State and the Immigration and Naturalization Service.

Any individual who claims to have resumed his citizenship under the provisions of this section may, upon the payment of a fee of $1, make application to the Commissioner of Immigration and Naturalization, accompanied by two photographs of the applicant, for a certificate of repatriation. Upon proof to the satisfaction of the commissioner that the applicant is a citizen and that the citizenship was resumed as claimed, such individual shall be furnished a certificate of repatriation by the commissioner, but only if such individual is at the time within the United States. The certificate of repatriation issued under this subdivision shall have the same effect as a certificate issued by a court having naturalization jurisdiction, and the provisions of subdivisions (b) and (c) of section 399c of this title shall apply in respect of proceedings and certificates of repatriation under this subdivision in the same manner and to the same extent, including penalties, as they apply in respect of proceedings and certificates of citizenship issued under such section. (June 29, 1906, c. 3592, § 4 (12), 34 Stat. 596; May 9, 1918, c. 69, § 1, 40 Stat. 545; June 21, 1930, c. 559, 46 Stat. 791; June 10, 1933, Ex. Or. 6166, § 14.)

Chapter 2.—ELECTIVE FRANCHISE

Sec.
31. Race, color, or previous condition not to affect right to vote.
32. Interference with freedom of elections.

Section 31. Race, color, or previous condition not to affect right to vote. All citizens of the United States who are otherwise qualified by law to vote at any election by the people in any State, Territory, district, county, city, parish, township, school district, municipality, or other territorial subdivision, shall be entitled and allowed to vote at all such elections, without distinction of race, color, or previous condition of servitude; any constitution, law, custom, usage,